

In the Supreme Court of Bangladesh
High Court Division
(Special original Jurisdiction)

Present:

Mr. Justice Md. Bazlur Rahman

And

Mr. Justice Syed Mohammed Tazrul Hossain

Writ Petition No. 7875 of 2024

Baizid Steel Industries Limited

Versus

Judge, Artha Rin Adalat No. 2, Dhaka and others

Mr. Munshi Moniruzzaman with

Mr. Mohammed Selim Jahangir, Advocates

..... For the petitioner

Mr. Lutfor Rahman, Advocate

.....For the respondent No. 2

Heard on: 28.10.2024, 30.10.2024, 03.11.2024 and

Judgment on: 05.11.2024

Syed Mohammed Tazrul Hossain, J:

At the instance of the petitioner this Rule Nisi was issued on
24.06.2024 by this court in the following terms:

"Let a Rule Nisi be issued calling upon the respondent
Nos. 1 and 2 to show cause as to why the impugned
ex-parte judgment and decree dated 23.05.2024 (decree signed

on 26.05.2024) passed by the learned Judge, Artha Rin Adalat No. 2, Dhaka in Artha Rin Suit No. 820 of 2023 should not be declared to have been passed without lawful authority and is of no legal effect and/or pass such other or further order or orders as to this Court may seem fit and proper.”

At the time of issuance of the Rule this court was pleased to stay all further proceedings of Artha Rin Suit No. 820 of 2023 for a period of 6(six) months from date.

Short facts of the case for disposal of the Rule in short are that the petitioner company availed a credit facility from respondent No. 2 which was rescheduled twice, but the petitioner failed to keep up with the regular installments. Lending institution then to realize its outstanding dues filed Artha Rin Suit No. 820/2023 on 10.07.2023 impleading the petitioner and others. Petitioner appeared before the court and prayed for time for submitting written statements, time was allowed. On the next date the petitioner sought time, time was allowed with cost, when on the next date petitioner again prayed for time prayer was rejected and next date was fixed for exparte hearing. On the fixed date the petitioner paid the costs and appeared with a written statement and filed an application for withdrawing the suit from exparte hearing and accept the written statement. Learned court rejected the application and passed the judgment and decreed the suit exparte.

Being aggrieved with the said exparte judgment and decree the petitioner filed the instant writ petition and obtained Rule.

Respondent No. 2 contested the rule by filling an affidavit in opposition denying the material averments made in the writ petition contending interalia that learned judge of the Artha Rin Adalat, Court No. 2, Dhaka has not committed any illegality in passing the impugned judgment and decree. The writ petition is misconceived, not maintainable and thus, the rule is liable to be discharged.

Learned Advocate Mohammed Selim Jahangir appearing on behalf of the petitioner placed the writ petition and the supplementary affidavit filed by him. Learned advocate submits that under the provisions of section 19 (1) of the Artha Rin Adalat Ain, 2003 (hereinafter "Ain, 2003") before passing an ex-parte judgment and decree the trial court has to be satisfied that (a) the date was fixed for ex-parte hearing; (b) the defendant does not appear on that day or (c) the defendant is not found present after he was called. But, in the instant case the date was fixed for hearing of the application filed by the defendants for withdrawing the case from exparte hearing and for acceptance of the written statements submitted by the defendants. Learned court has committed illegality in not allowing the application of the petitioner and passing the exparte judgment and decree on the same date.

Learned advocate then submits that under the provisions of Section 10 of the Ain, 2003 court was sufficiently empowered to grant the application

of the petitioner and accept the written statements submitted by it. He submits that under the strict provision of section 10 of the Ain, 2003 defendants are allowed 60 (sixty) days' time, but by including section 10(2) in the Ain, the legislature gave flexibility to the time frame for submission of written statements in an Artha Rin Suit, thus learned court below has committed a wrong by passing the impugned exparte judgment and decree only on the 70th day from the date of appearance of the defendants in the said Artha Rin Suit whereas the defendants were very much present and willing to contest the suit. In support of his case he cites the case of **Abdul Hamid Chowdhury (Iqbal) and another vs. Artha Rin Adalat and another** reported in **68 DLR (HCD) 148**.

Mr. Jahangir submits the judgment of an unreported case passed by this Division in **writ petition No. 3618 of 2022** which was annexure D to the writ petition and argues that the facts of above mentioned writ petition were very much similar to the instant case. In that case this Division found that the exparte judgment and decree passed by the court below was not sustainable and rule was made absolute.

Learned advocate for the petitioner further submits that the plaint and the documents submitted in the Artha Rin Suit No. 820/2023 are required to be supported by sworn affidavit, but in the instant case the documents submitted with the plaint was not supported by an affidavit and the impugned exparte judgment and decree passed relying upon documents not supported by an affidavit is a nullity. In support of his argument, Mr. Jahangir referred to the cases of **Mrs. Nahid Anwar Khan vs. Artha Rin**

Adalat No. 2, Dhaka and others reported in **3 ALR (HCD) 241**; **Rashida Yasmin vs. Government of Bangladesh represented by the Secretary, Ministry of law and others**, reported in **21 BLC (HCD) 212**; he also submitted the judgment of an unreported case passed by this Division in **writ petition No. 10017/2012**. Learned advocate finally submits that learned court below has committed gross violation of laws in passing the impugned exparte judgment and decree and hence rule in the instant writ petition shall be made absolute.

In reply, Mr. Lutfor Rahman, learned Advocate appearing for the respondent No. 2 submits that impugned judgment and decree was passed in accordance with law on the basis of the materials on record. He submits that the petitioner tried to obtain benefit of his own wrong and malafide activities. By pointing out the various dates of the instant Artha Rin suit,

Mr. Rahman submits that the petitioner had been allowed ample opportunity to submit his written statement and contest the suit but due to his adoption of dilatory tactic he disobeyed the order of the learned court below and failed to submit his written statement within the time permitted by court. He submits that the petitioner appeared in the suit on 26.09.2003 and he repeatedly prayed for time to submit written statement. Learned court below allowed him time to the full extent (little over 60 working days altogether even though law permits only 60 days) as permitted under section 10 of the Ain, 2003 but as the petitioner willfully crossed the time frame stipulated under the provision of section 10 of the said Ain, learned court below passed the judgment and decree exparte as mandated by

the Ain, 2003 being a special law. Mr. Rahman submitted the cases of ABSCO Limited vs. Artha Rin Adalat No. 2, Dhaka and another, reported in **67 DLR (HCD) 9; 21 BLC (HCD) 322**.

Learned advocate submits that the learned court below passed the impugned judgment and decree complying with the mandatory provisions of law. He further submits that the plaint of the Artha Rin Suit No. 820/2023 contained mention of the documents which were submitted in a firisti together with the plaint of the case and the plaint was supported by an affidavit by the plaintiff, the instant respondent No. 2 thus there was no violation of section 6(2) of the Ain, 2003. He argues that the affidavit submitted with the plaint of the instant Artha Rin Suit is enough to meet the requirements of Ain regarding affidavit under section 6(2) and 6(4) of the Ain, 2003. However, when relevant affidavit was pointed out, he candidly admits that the language used in the affidavit could have been little more specific regarding the documents submitted.

We have heard the learned advocates for both sides. Perused the writ petition, supplementary affidavit, affidavit in oppositions, examined the materials on record as well as the relevant laws and the decisions referred and considered them carefully.

The apparent legal issues which requires to be addressed in the instant matter are whether the Adalat's decision to dispose of the suit *exparte* under section 10 of the Ain, 2003 is lawful and secondly whether the Adalat has failed to comply the requirements section 6(4) of the Ain, 2003 in passing the impugned *exparte* judgment and decree.

Let us take up the above mentioned first issue as to the lawfulness of the Adalat's decision to dispose of the suit *exparte*. Learned advocate for the petitioner at the outset submits that to pass an *exparte* judgment, learned court under section 19(1) has to be satisfied of some conditions as clearly chalked out in the said section of law. Without going into much details it could be found that such an argument is irrelevant for the case that we are dealing with. Provision of section 19 comes into play after the defendant submits written statement and trial begins. Whereas in the instant case defendant has failed to submit his written statement and such a scenario falls under the scheme of section 10 of the Ain, 2003. This view gains support of the decision of this Division reported in 67 DLR (HCD) 9, where it was observed that “upon the grounds for *exparte* proceedings maturing under section 10 there remains no scope under the scheme of the Ain for section 19 provisions for *exparte* hearing to equally come into play. Section 19 in this regard is found to be predicated upon a due filing of written statements taking place.”

To consider the matter it will be useful to read section 10 of the Artha Rin Adalat Ain, 2003, which reads as follows:

“১০। (১) উপ-ধারা (২) এর বিধান সাপেক্ষে, অর্থ ঋণ আদালত বিবাদী উপস্থিত হওয়ার ৪০ (চল্লিশ) দিবসের পরবর্তীতে বিবাদী কর্তৃক দাখিলকৃত কোন লিখিত জবাব গ্রহণ করিবে না এবং এইরূপ ক্ষেত্রে আদালত অবিলম্বে একতরফা সূত্রে মামলা নিষ্পত্তি করিবে।

(২) উপ-ধারা (১) বিধান সত্ত্বেও, অন্যান্য ২০০০ (দুই হাজার) এবং অনূর্ধ্ব ৫০০০ (পাঁচ হাজার) টাকা পর্যন্ত খরচ প্রদানের পূর্বশর্ত সাপেক্ষে আদালত উপরিউক্ত সময়সীমা অনূর্ধ্ব আরো ২০ (বিশ) দিবস পর্যন্ত বর্ধিত করিতে পারিবে।

(৩).....”

From the plain reading of this section of law it is clear that under the

provision of section 10(1) Adalat shall not accept any written statement from the defendant after the expiry of 40 days from the date of appearance of the defendant in the Artha Rin Suit and in such a case Adalat shall dispose of the suit exparte. However, section 10(2) of the Ain offers some respite to the defendant; under the provision of section 10(2) Adalat may allow up to 20 days' time to the defendant to submit written statement subject to payment of costs of minimum taka 2000 and maximum taka 5000 as determined by the Adalat. This time frame might look little flexible, but that flexibility is not so much that the time frame could be extended beyond the statutory period of altogether (40+20) 60 working days. This is a mandatory provision of law as section 10(1) provides for a consequence if the written statement is not submitted within the stipulated period of time from the date appearance of the defendant.

From the examination of the order sheet as annexed by the petitioner in the supplementary affidavit it appears that the petitioner appeared in the suit on 26.09.2023 and filed an application with a prayer for time for filing written statement, application was granted and next date was fixed on 30.11.2023 for submission of written statements. On the fixed date petitioner again prayed for time, time was granted with a cost of Tk. 2000 and next date was fixed on 03.02.2024. On the fixed date without paying the cost petitioner again prayed for time, prayer was rejected and next date was fixed on 24.04.2024 for exparte hearing. On the fixed date the petitioner paid the cost of tk. 2000, submitted written statement and filed an application with the prayer for withdrawing the case from exparte and to

accept the written statement. On this date designated judge was busy and next date was fixed on 23.05.2024 for hearing the application of the petitioner regarding acceptance of written statement and for exparte hearing. On the fixed date learned court rejected the application of the petitioner and passed the judgment and decree exparte.

To assail propriety of the impugned judgment and decree learned advocate for the petitioner referred the decision reported in **68 DLR (HCD) 148** and he also relied upon the decision of **Writ Petition No. 3618 of 2022** which was Annexure-D to the writ petition. Careful reading of said decisions make it clear that in both the cases the defendants were not allowed the statutory period permitted by law to submit their written statements hence the exparte judgment passed in those cases were set aside. But, facts of the instant case are completely different and as such referred decisions are not applicable to the instant matter and we find that the approach of the learned court below is correct so far it took the decision to pronounce the judgment exparte under the provision of section 10 of the Ain, 2003.

Let us now take up the second point at issue as to whether the Adalat has failed to comply the requirements section 6(4) of the Ain, 2003 in passing the impugned exparte judgment and decree. To deal with the issue we need to consider the relevant provisions of section 6 of the Artha Rin Adalat Ain, 2003, which is quoted below for ready reference:

“ ৬। (১) এই আইনের অধীন অর্থস্বন আদালতে দায়েরকৃত কোন মামলার বিচার বা নিষ্পত্তি সম্পর্কিত কার্যক্রমে, এই আইনের বিধানাবলীর সহিত অসংগতিপূর্ণ না হওয়া সাপেক্ষে, The Code of Civil Procedure 1908 এর সংশ্লিষ্ট বিধানাবলী প্রযোজ্য হইবে।

(২) এই আইনের অধীন কোন মামলা আর্থিক প্রতিষ্ঠান কর্তৃক আরজি দাখিলের মাধ্যমে দায়ের করিতে হইবে, আরজির বক্তব্য এবং সংশ্লিষ্ট দালিলিক প্রমাণাদির সমর্থনে আরজির সহিত একটি হলফনামা (affidavit) সংযুক্ত করিতে হইবে, আরজির সহিত প্রদেয়

কোর্ট ফি (ad volarem) প্রদান করিতে হইবে এবং দাখিলকৃত আরজি যথাযথ হইলে আদালতের নির্ধারিত রেজিস্টারে উহা ক্রম অনুসারে অন্তর্ভুক্ত করিতে হইবে।

(৩) এই আইনের অধীন আর্থিক প্রতিষ্ঠান কর্তৃক দায়েরকৃত মামলা বিবাদী কর্তৃক লিখিত জবাব দাখিলের মাধ্যমে প্রতিদ্বন্দ্বিতা করা যাইবে, লিখিত জবাবের বক্তব্যের এবং সংশ্লিষ্ট দালিলিক প্রমাণাদির সমর্থনে লিখিত জবাবের সহিত একট হলফনামা (affidavit) সংযুক্ত করিতে হইবে [****] এবং দাখিলকৃত লিখিত জবাব মামলার নথিতে সামিল হইবে।

(৪) এই আইনের অধীন অর্থখন আদালতে মামলা নিষ্পত্তির ক্ষেত্রে উপ-ধারা (২) ও (৩) এর বিধান অনুযায়ী সংযুক্ত হলফনামা (affidavit) মৌলিক সাক্ষ্য (substantive evidence) হিসাবে গণ্য হইবে, এবং আদালত কোন মামলার একতরফা বা তাত্ক্ষণিক নিষ্পত্তির ক্ষেত্রে কোন সাক্ষীকে পরীক্ষা ব্যতিরেকে, কেবল এইরূপ হলফনামা-যুক্ত আরজি বা লিখিত জবাব ও সংশ্লিষ্ট দালিলিক প্রমাণাদি বিশ্লেষণ করিয়া রায় বা আদেশ প্রদান করিবে।

(৫) "

On perusal of Section 6(2) of the Ain, 2003 it appears that both the plaint and the documents submitted by the plaintiff in an Artha Rin Suit are required to be supported by affidavit. This requirement has two arms, (a) plaint and (b) the documents, that are submitted in support of the plaint. Let us examine the relevant part of the affidavit which was submitted with the plaint of the Artha Rin Suit No. 820 of 2023. Body of the affidavit as found in the Annexure "B" reads as:

"1. That I am the officer of the plaintiff of this plaint and well conversant with the facts of the case and competent to swear this affidavit.

2. That the statements of facts made in this application are true to the best of my knowledge and belief and rests are submissions before this Hon'ble Court and in witness whereof I swear this affidavit and signed below on this the 10 day of July 2023 at 11.30 am. Before the commissioner of affidavit."

From the above it is palpably apparent that the produced affidavit even though might be found to be sufficient to cover the plaint, but it does not at all cover the documents submitted with the plaint itself. Hence, respondent No. 2, plaintiff has not met the requirement of section 6(2) of the Ain, 2003 in filing the Artha Rin Suit. This Division in **Rashida Yeasmin Vs. Bangladesh** reported in **25 BLC (HCD) 212** observed that

“.....the affidavit under section 6(2) must be in a manner which is declaratory of conversance with and in attestation of the documents submitted in court in support of the claim of the plaintiff.....”

This deficiency however in the suit may be cured by submitting an appropriate affidavit or by producing an attesting witness. But, such deficiency will have a telling effect if the suit is disposed of exparte. Under the provision of section 6(4) of the Ain, 2003 the Adalat is vested with the power to dispose of the suit summarily on the basis of the plaint and the documents filed therewith.

The relevant part of the impugned order reads as follows:

"..... এমতাবস্থায় মামলাটি একতরফা গুনানী অন্তে একতরফা আদেশের জন্য নেয়া হলো । উল্লেখ্য যে, উক্ত আইনের ৬(৪) ধারার বিধান মোতাবেক বাদীপক্ষ এফিডেভিটসহ আরজি দাখিল করত: তার সাথে সংশ্লিষ্ট প্রমানপত্র দাখিল করে মামলা দায়ের করলে মামলার একতরফা বা তাৎক্ষণিক নিষ্পত্তির ক্ষেত্রে কোন সাক্ষীকে পরীক্ষা ব্যতিরেকে হলফনামাযুক্ত আরজি, সংশ্লিষ্ট দালিলিক প্রমানাদি বিশ্লেষণপূর্বক রায় বা আদেশ প্রদান করা যায় । অএ মামলার বাদী আরজির সাথে হলফনামা দাখিল করেছেন যা উক্ত আইনের ৬(৪) ধারায় substantive evidence বা মৌলিক সাক্ষ্য হিসেবে গণ্যযোগ্য ।

রেকর্ড পর্যালোচনায় দেখা যায় যে, বাদীপক্ষ বিগত ০৬/০৬/২০২৩ খ্রি: তারিখ পর্যন্ত ২৭,৬০,৩০,৭০৬.০০/- (সাতাশ কোটি ষাট লক্ষ ত্রিশ হাজার সাতশত ছয় টাকা) আদায়ের নিমিত্ত অএ মামলা দায়ের করেছেন । বাদীপক্ষ উক্ত দাবীর সমর্থনে ফিরিস্তি যোগে হিসাব বিবরণীসহ সংশ্লিষ্ট মূল কাগজপত্রাদি দাখিল করেছেন । মামলার আরজি. বাদীপক্ষে দাখিলী ফিরিস্তিযুক্ত মূল বাদীপক্ষের দাবী আইনানুগভাবে প্রমানিত হয়েছে মর্মে প্রতীয়মান হয় । সুতরাং, বাদীপক্ষ প্রার্থীত প্রতিকার পেতে আইনত হকদার ।"

From the reading of the order, it appears that even though the court below mentioned section 6(4) of the Ain, 2003, but clearly it did not satisfy itself regarding the reliability of the documents submitted together with the plaint and failed to observe that the requirement of section 6(2) of the Ain, 2003 was not met by the plaintiff. In our view, exercise of jurisdiction

under section 6(4) of the Ain, 2003 is preconditioned with meeting the requirements of section 6(2) of the Ain. Thus as evident from the plaint of the Suit, being annexure "B" to the instant writ petition demonstrates that mandatory provision of law under section 6(2) of the Ain, 2003 has not been complied with.

In view of the legal and factual positions as discussed above we are inclined to hold that the instant Rule merits positive consideration.

In the result rule is made absolute with no order as to cost. The exparte judgment and decree, dated 23.05.2024, decree signed on 26.05.2024 (Annexure-A and A1) passed by the learned Artha Rin Adalat, Court No. 2, Dhaka in Artha Rin Suit No. 820 of 2023 is declared to be of no legal effect and hereby set aside.

Learned judge of the Artha Rin Adalat, Court No. 2, Dhaka is hereby directed to take up and dispose of the Artha Rin Suit No. 820 of 2023 in accordance with law, within 120 days, with utmost expedition.

The order of stay granted earlier in the instant matter stands vacated.

Communicate the judgment to the concerned court at once.

.....
(Syed Mohammed Tazrul Hossain,J)

I agree

.....
(Md. Bazlur Rahman,J)

